Messrs. Charles Hershenstein and *Edward J. O'Mara* with whom *Messrs. James A. Hamill* and *John A. Matthews* were on the brief, for petitioners. See p. 661.

Messrs. Morris L. Ernst and *Spaulding Frazer,* with whom *Messrs. Lee Pressman* and *Benjamin Kaplan* were on the brief, for respondents. See p. 668.

By leave of Court, the Committee on the Bill of Rights of the American Bar Association, filed a brief, as *amici curiae,* discussing the right of assembly. See p. 678.

MR. JUSTICE BUTLER, presiding in the absence of the CHIEF JUSTICE and MR. JUSTICE MCREYNOLDS:

The judgment of the court in this case is that the decree is modified and as modified affirmed. MR. JUSTICE FRANKFURTER and MR. JUSTICE DOUGLAS took no part in the consideration or decision of the case. MR. JUSTICE ROBERTS has an opinion in which MR. JUSTICE BLACK concurs, and MR. JUSTICE STONE an opinion in which MR. JUSTICE REED concurs. The CHIEF JUSTICE concurs in an opinion. MR. JUSTICE MCREYNOLDS and MR. JUSTICE BUTLER dissent for reasons stated in opinions by them respectively.

MR. JUSTICE ROBERTS delivered an opinion in which MR. JUSTICE BLACK concurred:

We granted certiorari as the case presents important questions in respect of the asserted privilege and immunity of citizens of the United States to advocate action pursuant to a federal statute, by distribution of printed matter and oral discussion in peaceable assembly; and the jurisdiction of federal courts of suits to restrain the abridgment of such privilege and immunity.

The respondents, individual citizens, unincorporated labor organizations composed of such citizens, and a mem-